

SECTION 9

Child Welfare

The Millennial Scoop: how Alberta's provincial child intervention system apprehends Indigenous children at 72 percent of its caseload while representing only 10 percent of the youth population, what the 2024 rejected \$47.8 billion federal settlement reveals about the disagreement, and how disabled Indigenous parents are placed at specific risk of apprehension by the same system that administers the disability benefit keeping their children out of it

In 2025, there are more Indigenous children in the Canadian child welfare system than there were in residential schools at the system's height. Researchers have named this the Millennial Scoop. The Government of Alberta's own 2024-25 Children and Family Services Annual Report confirms the pattern in its own numbers: 72 percent of the provincial child intervention caseload is Indigenous, in a province where Indigenous youth represent approximately 10 percent of the youth population. The children are different. The policy framework looks different. The removal mechanism is different. The outcome is the same."

This section documents the child welfare system as it operates for Indigenous families in Alberta. The section builds on three previous pieces of this report: Section 1's documentation of the residential school system and the Sixties Scoop; Section 3's jurisdictional fracture framework; and Section 8's Jordan's Principle analysis. What Section 9 adds is the specific provincial administrative system — Alberta Children and Family Services — through which Indigenous child apprehension occurs today, the scale of that apprehension as documented by the provincial government's own reporting, and the structural risk the system poses specifically to disabled Indigenous parents whose disabilities are themselves the product of the upstream causes Sections 4 through 7 have established.

Four findings structure the section. First, that Indigenous children are overrepresented in the Canadian child welfare system at ratios the peer-reviewed literature and Truth and Reconciliation Commission have characterized as the Millennial Scoop — a continuation rather than a replacement of the residential school and Sixties Scoop pattern. Second, that Alberta specifically holds the highest disparity rate in Canada: Indigenous children at 28.9 percentage points higher than non-Indigenous children in foster care, driven by Alberta's combination of the second-highest Indigenous foster child rate and the lowest non-Indigenous foster child rate nationally. Third, that the federal \$47.8 billion First Nations Child and Family Services settlement

agreement was voted down by 267 First Nations chiefs and proxies in October 2024, on grounds documented by the First Nations Child and Family Caring Society as failing to remedy the structural underfunding that produces the apprehension pattern. Fourth, that the child welfare system structurally disadvantages disabled Indigenous parents, whose disabilities are frequently themselves evidence used against them in apprehension proceedings, and whose reduced income, contested housing, and collapsed healthcare access — all documented in Sections 4 through 7 — operate as risk factors in the provincial intake framework.

Part 1: What Alberta's own reporting documents

The 2024-25 Children and Family Services Annual Report

The Government of Alberta's Ministry of Children and Family Services publishes an annual report documenting the provincial child intervention system. The 2024-25 Annual Report, published on open.alberta.ca, provides the following primary-source figures (page 1 of the report):

- In 2024-25, on average each month, 6,439 Indigenous children received child intervention services.
- Indigenous children accounted for 72 percent of the provincial child intervention caseload.
- The number of Indigenous children receiving services decreased by 1 percent compared to the prior year — a rate of change that, at its current trajectory, would require 72 years to achieve proportional representation with the non-Indigenous population.
- Children and youth in care are supported through one of the ministry's delegated First Nation agencies, with 22 Delegated First Nation Agencies representing 37 of 48 Alberta First Nations.

The 72 percent figure is from the Alberta government's own reporting. It is not contested. The Minister responsible has acknowledged, in the same Annual Report, that the ministry is taking a “multi-faceted approach to address the overrepresentation of Indigenous children in the child intervention system.” The overrepresentation itself is administratively acknowledged at the highest level of the provincial ministry.

The prior year context

Earlier reporting establishes this is not new. As of December 2022, 74 percent of youth in care in Alberta were Indigenous, even though they comprised approximately 10 percent of the youth population (CBC Indigenous, April 2023). The overrepresentation ratio is therefore approximately 7-to-1: for every non-Indigenous child in the Alberta child welfare system, there are disproportionately seven Indigenous children relative to their share of the general youth population.

Statistics Canada's 2021 Census analysis, published April 18, 2024, established the national pattern:

- In 2021, Indigenous children accounted for 7.7 percent of all children under age 15 in the Canadian general population.
- Indigenous children accounted for 53.8 percent of all children in foster care.
- The overrepresentation ratio nationally is therefore approximately 7-to-1 — the same ratio documented in Alberta's provincial caseload.
- Manitoba held the highest rate of Indigenous foster children at 61.8 per 1,000 Indigenous children.
- Alberta held the highest disparity rate in Canada — 28.9 percentage points between rates of Indigenous and non-Indigenous foster children. This is because Alberta had the second-highest rate of Indigenous children in foster care combined with the lowest non-Indigenous foster child rate in Canada.
- Rates of foster children were two times higher among First Nations children living off reserve (49.9 per 1,000) compared with those living on reserve (24.6 per 1,000).
- Rates were four times higher among Inuit children living outside Inuit Nunangat (79.1 per 1,000) compared with those living inside Inuit Nunangat (18.8 per 1,000).

The off-reserve disparity is structurally significant. The populations most likely to be in the Alberta child welfare system are Indigenous children living off reserve — in Edmonton, Calgary, Lethbridge, Red Deer, and the other urban centres where the provincial child intervention system operates most intensively. The jurisdictional fracture from Section 3 operates here: on-reserve child welfare is federal responsibility and historically under-resourced; off-reserve child welfare is provincial responsibility and operationalized through the Alberta Children and Family Services system that the 2024-25 Annual Report documents.

The 17-fold apprehension disparity

The 2019 First Nations/Canadian Incidence Study of Reported Child Abuse and Neglect (FN/CIS 2019), published by Fallon, Lefebvre, Trocmé et al. in 2021 in the peer-reviewed literature under the title “Denouncing the Continued Overrepresentation of First Nations Children in Canadian Child Welfare,” established that Indigenous children are 17 times more likely to be removed from their families and placed in the child welfare system than non-Indigenous children in Canada.

This is not a ratio of children already in the system. It is a ratio of the probability of apprehension. An Indigenous child in Canada, all other factors being equal, is 17 times more likely to be taken from their family than a non-Indigenous child in comparable circumstances. The apprehension threshold is lower. The scrutiny is higher. The removal rate reflects that.

Indigenous children are 17 times more likely to be removed from their families than non-Indigenous children. In Alberta, 72 percent of the child

intervention caseload is Indigenous. The Statistics Canada finding, the peer-reviewed apprehension study, and the Alberta government's own Annual Report all point to the same conclusion, each from a different methodological direction. The numbers are not contested. The pattern is administratively acknowledged. The remedy is outstanding."

Part 2: The Millennial Scoop

The term and what it names

In academic and advocacy literature, the continuing overrepresentation of Indigenous children in the Canadian child welfare system has been named the "Millennial Scoop" or "Millennium Scoop." The term originates in work by Fallon, Lefebvre, Trocmé, Richard, Hélie, Montgomery, Bennett, Joh-Carnella, Saint-Girons, and Filippelli (2021), in CBC Radio coverage (The Current, January 2018), and in subsequent Truth and Reconciliation Commission and National Centre for Truth and Reconciliation documentation.

The comparison the term invokes is explicit. The residential school system, at its height in the 1930s and 1940s, held approximately 150,000 Indigenous children across its documented operation. The Sixties Scoop, operating primarily between the 1960s and 1980s, removed approximately 20,000 Indigenous children from their families through provincial child welfare systems and placed them, typically, with non-Indigenous foster and adoptive families. The Millennial Scoop, as documented, produces a population of Indigenous children currently in the child welfare system that exceeds the peak population of either preceding system.

The Truth and Reconciliation Commission of Canada, in its 2015 Final Report, documented the historical and ongoing forced removal of Indigenous children from their families and communities — and thereby their cultures and identities — as a "systemic cultural genocide with harmful intergenerational consequences." The Commission specifically called for reductions in the Indigenous foster child population. Calls to Action 1 through 5 address child welfare directly. Ten years later, the administrative reality documented in this section establishes that the Calls to Action have not been operationalized at a rate sufficient to reverse the overrepresentation pattern.

The documented mechanisms

The peer-reviewed literature documents several mechanisms by which the Millennial Scoop operates:

- Poverty as trigger: Indigenous families are more likely to be in poverty; poverty produces conditions (housing instability, food insecurity, family stress) that child welfare systems identify as neglect or risk factors. The 2011 National Household Survey documented that 38 percent of Indigenous children in Canada live in poverty, compared to 7 percent of non-Indigenous children

— a 5.4-times higher rate. Child welfare intervention is triggered by conditions that are themselves the product of the housing, land, water, and healthcare failures documented in Sections 4 through 7.

- Disability as risk factor: Indigenous parents with disabilities, medical complexity, or mental health conditions — precisely the population this report documents — face heightened risk of apprehension proceedings. Parental disability is documented in the child welfare literature as a risk factor considered in intake assessments. For an Indigenous parent whose disability is itself the product of the upstream causes this report has established, the disability is used against them in the very system that would take their children.
- Cultural discontinuity: The 2021 Census analysis established that the majority of Indigenous children in foster care are placed with non-Indigenous foster families. The loss of cultural continuity — connection to family, language, land, kinship, and community — is itself documented by Statistics Canada and by peer-reviewed research (Quinn 2022, Liebenberg et al. 2019) as a harm to the child’s long-term mental health, identity, and wellbeing. The cure causes additional harm.
- Colonial inheritance: The Public Health Agency of Canada’s own 2024 analysis in Health Promotion and Chronic Disease Prevention in Canada explicitly recognizes that Canadian child welfare systems “are colonial systems with abiding legacies of institutional abuse and discrimination against Indigenous, Black and other racialized communities.” The federal government’s own public health reporting acknowledges the colonial nature of the system producing the Millennial Scoop.

There are more Indigenous children in the Canadian child welfare system today than there were in residential schools at the height of the residential school system. Researchers call this the Millennial Scoop. The Government of Canada’s own public health reporting calls the system “colonial.” The mechanism has changed. The population being removed has not.”

Part 3: The rejected \$47.8 billion settlement

What the settlement was

In 2024, the Government of Canada negotiated a draft Final Settlement Agreement with the Assembly of First Nations addressing the First Nations Child and Family Services program. The settlement’s headline figure was \$47.8 billion over ten years, intended to reform the long-term underfunding of the on-reserve child and family services system that had been the subject of Canadian Human Rights Tribunal rulings since 2016 in parallel to the Jordan’s Principle litigation documented in Section 8.

The settlement was put to a vote of the First Nations chiefs in assembly at the Assembly of First Nations meeting on October 17, 2024. The vote was taken after two days of hearing varying perspectives on the proposed deal. The resolution was titled “Our Children, Our Future — Draft Agreement on reforming the First Nations Child and Family Services Program.”

The vote was as follows: **267 chiefs and proxies voted against.** 147 voted in favour. One abstained. The settlement was rejected.

Why it was rejected

The First Nations Child and Family Caring Society released, in August 2024, its Draft FSA Report Card: Evaluation of the Key Elements of the Final Settlement Agreement on First Nations Child and Family Services. The Caring Society’s evaluation identified structural shortcomings including:

- The settlement’s funding framework did not commit to the enforceable substantive equality standard that Canadian Human Rights Tribunal rulings had established.
- The reforms to service delivery would not address the documented underfunding levels that had been producing the apprehension pattern.
- The settlement did not adequately address the structural reforms necessary to implement Calls to Action 1 through 5 of the Truth and Reconciliation Commission.
- The settlement risked locking in a funding formula that would not grow with the population of First Nations children or with the documented cost of substantive equality.

The First Nations Child and Family Caring Society, led by Dr. Cindy Blackstock, proposed amendments to the draft agreement. The amendments were not incorporated into the final proposal that went to the vote. The rejection by 267 chiefs represents a supermajority of Canadian First Nations leadership determining that the settlement as written would not produce the structural remedy that the Canadian Human Rights Tribunal rulings required.

The status as of April 2026

Following the October 2024 rejection, the federal government and the Assembly of First Nations entered renewed negotiation. No revised settlement has been publicly ratified as of the publication of this report. The underlying Canadian Human Rights Tribunal proceedings — which established Canada’s liability for the First Nations child and family services underfunding discrimination — remain in effect. The administrative pattern that produces the apprehension data documented in Part 1 of this section continues unremedied at the federal funding level.

In the interim, the operational bulletin affecting Jordan’s Principle documented in Section 8 has narrowed the complementary federal program that Indigenous families have relied upon as a supplement to the structurally underfunded child and family services program. The net effect between October 2024 and April 2026 has been: federal child welfare structural reform remains

unratified; Jordan's Principle has been narrowed; provincial child welfare apprehension continues at 72 percent Indigenous caseload. Three federal-provincial administrative failures compound simultaneously.

Part 4: The specific risk to disabled Indigenous parents

The intersection this report documents

This report documents a specific population: Indigenous disabled Albertans. Section 9 must therefore address the specific intersection that occurs when a disabled Indigenous parent is also the primary caregiver of a disabled Indigenous child. In Alberta's documented child welfare context, this intersection is not hypothetical. It is the operational reality of a significant share of the 6,439 Indigenous children receiving child intervention services in any given month.

The Alberta Disability System Breakdown report series documents the financial reality of AISH and ADAP recipients: \$1,940 monthly benefit against rent exceeding the entire benefit, 86 percent of AISH recipients single individuals, and the July 1, 2026 transition reducing that benefit further. For a disabled Indigenous parent, this financial reality intersects with the child welfare system in specific documented ways:

- Housing instability is a child welfare risk factor. The housing conditions documented in Section 4 — inadequate on-reserve housing, uncapped private market rents, 10,000+ Civiida waitlist, the October 2025 63 percent community housing rent increase — produce the documented conditions that intake workers identify as neglect indicators.
- Parental disability is a risk factor assessed in intake. For an Indigenous parent whose disability traces to the upstream causes of Sections 1, 4, 5, 6, and 7 — residential school intergenerational trauma, contaminated land, poisoned water, healthcare system failure — the disability is itself evidence against them.
- Cognitive, communication, and literacy profiles associated with AISH-qualifying conditions produce difficulty navigating the child intervention system. The same profile that produces difficulty navigating the dual healthcare system documented in Section 7 produces difficulty navigating the Court of Queen's Bench proceedings that follow a child apprehension.
- Parental healthcare access collapse — the 650,000 Albertans without a GP documented in Section 7 — produces missed medical appointments for both parent and child that intake workers identify as indicators of medical neglect.

The disability-child-welfare risk compound

Alberta has, according to the Financial Analysis Community Version of the Alberta Disability System Breakdown report series, the highest child maltreatment rates in Canada. When that province's child welfare system is simultaneously the one with the highest Indigenous

overrepresentation disparity in Canada, the compound risk profile for a disabled Indigenous parent in Alberta is structurally elevated relative to comparable parents in any other province.

For an AISH recipient who is a single parent of disabled children, the intersection produces specific cascade risks:

- If the parent's AISH benefit is reduced under ADAP (documented \$200 per month cut effective January 2028), housing cost consumes a higher proportion of income, instability risk rises, intake attention rises, apprehension risk rises.
- If the parent loses AISH eligibility entirely under the reassessment documented in the main report series, loss of income triggers a cascade that includes loss of housing, loss of access to specialized services (FSCD, PDD), and potential child welfare intervention.
- If the parent's appeal rights are stripped under Bill 12 (passed December 9, 2025, documented in the main series), the parent cannot challenge the AISH determination that produces the cascade.

The provincial government that operates the child welfare system apprehending Indigenous children at 72 percent of its caseload is the same provincial government administering AISH and ADAP, the same government implementing the July 1, 2026 transition, the same government that implemented the October 2025 community housing rent increase, and the same government that stripped appeal rights through Bill 12. The parent facing apprehension and the parent facing benefit cut are frequently the same parent.

The same ministry that administers adult disability benefits in Alberta also administers child welfare. Assisted Living and Social Services oversees both the AISH program cutting the parent's income and the Children and Family Services file that will flag the resulting housing instability as a risk factor. The systems do not coordinate to protect the family. They coordinate, structurally, to destabilize it."

Part 5: Bill C-92 and the limits of jurisdictional transfer

An Act respecting First Nations, Inuit and Métis children, youth and families

On January 1, 2020, the federal Act respecting First Nations, Inuit and Métis children, youth and families (Bill C-92, now the First Nations, Inuit and Métis Families Act) came into force. The Act affirms the rights of First Nations, Inuit, and Métis peoples to exercise jurisdiction over child and family services, and establishes a process through which Indigenous governing bodies can enter into coordination agreements with the federal government and the relevant provincial or territorial government to take over child and family services for their members.

The Act represents the most significant federal legislative response to the Truth and Reconciliation Commission's Calls to Action 1 through 5 on child welfare. The mechanism it creates is jurisdictional transfer: the ability of Indigenous governing bodies to operate their own child and family services under their own laws, with federal funding flowing through the coordination agreement framework.

In Alberta specifically, 22 Delegated First Nation Agencies represent 37 of 48 Alberta First Nations in the existing delegation framework that predates Bill C-92. The Delegated First Nation Agencies operate under provincial legislative authority but with some degree of First Nation-specific design and community connection. Bill C-92 provides a pathway for these agencies, and for First Nations outside the existing delegation framework, to transition to fully Indigenous-jurisdiction child and family services.

The limits of the current framework

The sustained challenge of Bill C-92 implementation is that jurisdictional transfer without adequate funding produces administrative jurisdiction without operational capacity. A First Nation with legal authority to operate its own child and family services cannot meaningfully exercise that authority without sufficient federal funding for caseworkers, placement resources, facilities, prevention services, and coordination with the provincial system in which non-Indigenous placements continue to occur.

The First Nations Child and Family Caring Society's sustained advocacy — the same advocacy that produced the Canadian Human Rights Tribunal rulings on Jordan's Principle documented in Section 8 — has established that the core structural issue is not the legislative framework but the operational funding. The October 2024 rejection by 267 chiefs of the \$47.8 billion Final Settlement Agreement represents a collective First Nations determination that the funding offered was not sufficient to operationalize the jurisdiction Bill C-92 affirms.

For an Indigenous child in Alberta in April 2026, the operational reality is:

- Bill C-92 affirms Indigenous jurisdiction over child and family services.
- The federal funding framework to operationalize that jurisdiction has not been adequately negotiated — evidenced by the October 2024 rejection.
- Provincial child welfare continues to operate through Alberta Children and Family Services, producing the 72 percent Indigenous caseload documented in Part 1.
- The Canadian Human Rights Tribunal rulings establish the federal government's ongoing liability for the discrimination produced by this framework.
- Jordan's Principle, which had functioned as the cross-cutting mechanism for addressing gaps between federal and provincial child-related services, has been narrowed by the February 2025 operational bulletin documented in Section 8.

The federal and provincial administrative systems, taken together, do not currently produce a pathway to structural remedy of the Millennial Scoop at the rate required to reverse the overrepresentation pattern within the current generation of Indigenous children.

What this section establishes for the remainder of the report

Alberta's provincial child welfare system, as documented by the Alberta government's own 2024-25 Annual Report, operates with an Indigenous caseload of 72 percent while Indigenous children represent approximately 10 percent of the youth population. The apprehension rate disparity between Indigenous and non-Indigenous children in Canada is 17-to-1. Alberta holds the highest disparity rate in Canada at 28.9 percentage points. The Truth and Reconciliation Commission documented the historical pattern producing these outcomes as systemic cultural genocide. The federal Canadian Human Rights Tribunal has ruled repeatedly, since 2016, that the First Nations Child and Family Services underfunding constitutes discrimination. The \$47.8 billion settlement negotiated in response was rejected by 267 First Nations chiefs in October 2024 on grounds that it would not produce structural remedy.

The population affected by this system is the same population this report documents: Indigenous children who will grow into Indigenous disabled adults, Indigenous parents whose disabilities are themselves the product of the upstream causes this report has established, Indigenous families who navigate the same dual federal-provincial administrative system that Sections 4 through 8 have already documented failing at every other point of contact. The child welfare system is one more expression of the pattern. It does not introduce a new failure. It elaborates the failure that is already present across housing, land, water, healthcare, and children's cross-jurisdictional services.

Sections 10 through 15 will address the justice system, MMIWG2S+, consultation failure, the Sovereignty Act's relationship to Treaty, TRC Calls to Action 18 through 24, and the July 1, 2026 ADAP transition synthesis. The pattern documented in Section 9 — disproportionate representation, provincial administrative acknowledgment of the problem, federal legal obligation insufficiently operationalized, settlement agreements as compensation-without-remedy, and specific compounded harm to disabled Indigenous persons — recurs in those sections. The documented population is the same. The remedy this report calls for is the same. The urgency increases with each section.

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